

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DASHAWN DUNCAN and MALIQUE MENDOZA,

Plaintiffs,

-against-

CITY OF NEW YORK, STEVE TORRES and JOHN
or JANE DOE 1-10,

Defendants.
-----X

SUMMONS

Index No.

Purchased: September 16, 2022

Plaintiffs select Kings County as the
Proper Venue for Trial Based Upon
Locus of Injury

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
September 16, 2022

SIM & DEPAOLA LLP

Attorneys-at-Law

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Bayside, New York 11361
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By: /s/ Samuel C. DePaola

Samuel C. DePaola, Esq.
Attorney for Plaintiffs

TO: CITY OF NEW YORK
Via Corporation Counsel of The City of New York
100 Church Street
New York, New York 10007

STEVE TORRES, P.O. (Shield No. 17913)
Via The 75 Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DASHAWN DUNCAN and MALIQUE MENDOZA,

Plaintiffs,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, STEVE TORRES and JOHN
or JANE DOE 1-10,

Defendants.

-----X

Plaintiffs, **DASHAWN DUNCAN** and **MALIQUE MENDOZA**, by the undersigned attorneys, **SIM & DEPAOLA LLP**, for their complaint against the Defendants, **CITY OF NEW YORK, STEVE TORRES** and **JOHN or JANE DOE 1-10**, allege and state, as follows:

1. This is a civil rights action, in which Plaintiffs seek relief vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws and constitution of the State of New York, including the self-executing clauses or implied private causes of action therein, for the violations of their civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.
2. The following claims arise from an incident occurring in Kings County on November 22, 2019, in which defendants, acting under color of state law, unlawfully stopped, questioned, searched, assaulted, arrested and detained Plaintiffs. As a result, Plaintiffs were deprived of their liberty over the course of approximately two (2) days and suffered various physical, emotional and psychological injuries. Plaintiff, Mr. Malique Mendoza, was maliciously prosecuted by defendants until the criminal proceedings were terminated in his favor on, or about, December 9, 2019, when all adverse charges were summarily and unconditionally dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiffs served notices of claim upon the City of New York pursuant to GML § 50-e.

5. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

6. Plaintiffs seek monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

7. Plaintiff, Mr. Dashawn Duncan ("Mr. Duncan"), is a 20-year-old, African American or Black male, who presently resides in Brooklyn, New York.

8. Plaintiff, Mr. Malique Mendoza ("Mr. Mendoza"), is a 19-year-old, African American or Black male, who presently resides in Brooklyn, New York.

9. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

10. At all times relevant hereto, defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD defendants herein.

11. In addition, at all times here relevant, defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

12. Defendant, STEVE TORRES (“TORRES”), was, at all times here relevant, a police officer, detective or sergeant employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of Defendant City. Defendant TORRES was, at the times relevant herein, a police officer, under Shield No. 17913. Defendant TORRES is being sued in his individual and official capacities.

13. At all relevant times herein, defendants JOHN or JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants JOHN or JANE DOE 1-10 are being sued in their individual and official capacities.

14. At all relevant times herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

15. On, or about, November 22, 2019, at approximately 1:00 p.m., in the vicinity of Vermont Street and Linden Boulevard, Brooklyn, New York, Plaintiff, Mr. Duncan, was a passenger in a vehicle owned and operated by Plaintiff, Mr. Mendoza, and both Plaintiffs were returning home from a job fair held near JFK airport.

16. Defendants, including TORRES, stopped the motor vehicle in which Plaintiffs were riding and pulled them over.

17. Defendants, including TORRES, proceeded to unlawfully question regarding illegal activity, despite possessing no valid reason to inquire, as no criminal activity was present or even reasonably suspected.

18. Defendants, including TORRES, never observed Plaintiffs in possession of a quantity of heroin, marijuana or any other controlled or illicit substance.

19. Defendants, including TORRES, proceeded to unlawfully enter and search the motor vehicle without consent, a judicially authorized search warrant or any other legal authority to do so.

20. Defendants, including TORRES, then fabricated the observations to justify their illegal search and seizure of Plaintiffs, including the presence of heroin, marijuana or drug paraphernalia within the vehicle that they each falsely purported to have observed while searching the vehicle.

21. Defendants, including TORRES, physically restrained and removed Plaintiffs by rear handcuffing them in an excessively tight fashion, which resulted substantial pain and physical discomfort to Plaintiffs' persons.

22. Defendants, including TORRES, then forcibly removed Plaintiffs to the 75 Precinct after grabbing Plaintiffs and shoving them into a police vehicle.

23. Defendants, including TORRES, then proceeded to criminally process Plaintiffs, which included fingerprinting, retina scans and various invasive bodily searches or strip-searches with attendant cavity inspections.

24. Defendants, including TORRES, then subjected Plaintiffs to illegal interrogation tactics by threatening them with a protracted criminal prosecution followed by a lengthy imprisonment, if they did not comply with defendants' demands by agreeing to testify and provide false evidence against the defendants' true target and suspect.

25. Defendants, including TORRES, retaliated against Plaintiffs by forwarding fabricated evidence to prosecutors, namely by falsely claiming to observe and recover quantities of heroin and marijuana from inside the vehicle Plaintiffs were occupying at the time of arrest and that Plaintiffs were observed exercising dominion and control of said illicit substances.

26. Defendants, including TORRES, proceeded to suppress exculpatory evidence from prosecutors, so that Plaintiffs would be criminally prosecuted, namely that the drug paraphernalia was discovered pursuant to an unlawful search of the vehicle, that the paraphernalia and quantities of heroin and marijuana were never recovered from Plaintiffs' vehicle and that Plaintiffs were never observed exercising dominion or control over any such illicit substances.

27. Defendants, including TORRES, based upon said fabricated observations, falsely informed prosecutors that Plaintiffs had exercised dominion and control over said gun and ammunition, despite their full and complete knowledge that Plaintiffs had committed no crimes or violations of the law and that a criminal prosecution would never succeed in the total absence of any probable cause to believe otherwise.

28. After Plaintiffs' arraignments, both were compelled to return to court multiple times to contest egregiously false criminal charges alleged against them by defendants, including TORRES.

29. Plaintiff, Mr. Mendoza, was maliciously prosecuted until the criminal proceedings terminated in his favor on, or about, December 9, 2019, when all charges were unconditionally outright dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

30. Defendants, including TORRES, arrested and attempted cause a criminal prosecution to be initiated against Plaintiffs, because of their desires to use Plaintiffs' arrests or criminal prosecution as leverage against their true targets, to incur additional overtime compensation, benefits and

career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of nonexistent observations, evidence and information.

31. Defendants, including TORRES, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiffs by personally conferring with each other, regarding the fabrication of nonexistent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

32. Plaintiffs assert that the Defendants, including TORRES who violated plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

33. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

34. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via incontrovertible evidence, such as video evidence.

35. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain system in throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

36. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from

an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

37. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

38. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

39. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers

and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

40. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

41. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

42. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun

Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

43. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

44. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff’s arrest without probable cause.

45. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

46. Defendants’ actions, pursuant to plaintiffs’ underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiffs’ civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City

of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

47. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

48. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

49. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the

City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendant TORRES.

50. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

51. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

52. The aforementioned acts of Defendants, including TORRES, directly or proximately resulted in the deprivation or violation of plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

53. As a direct or proximate result of said acts, plaintiffs were caused to suffer the loss of their liberties, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Unreasonable Search & Seizure Under
New York State Law

54. The above paragraphs are here incorporated by reference as though fully set forth herein.

55. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

56. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their person and property.

57. Plaintiffs did not consent to the unreasonable searches and seizures to their person or property.

58. The unreasonable searches and seizures to plaintiffs' person and property were not otherwise privileged.

59. Accordingly, defendants violated plaintiffs' right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

60. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

61. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unreasonable Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants

62. The above paragraphs are here incorporated by reference as though fully set forth herein.

63. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

64. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their person and property.

65. Plaintiffs did not consent to the unreasonable searches and seizures to their person or property.

66. The unreasonable searches and seizures to plaintiffs' person and property were not otherwise privileged.

67. Accordingly, defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

68. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth herein.

70. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

71. Plaintiffs were conscious of their confinement.

72. Plaintiffs did not consent to their confinement.

73. Plaintiffs' arrests and false imprisonments were not otherwise privileged.

74. Defendant City of New York, as employer of the individual defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

76. The above paragraphs are here incorporated by reference as though fully set forth herein.

77. Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

78. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

79. At all relevant times, defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

80. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

81. The above paragraphs are here incorporated by reference as though fully set forth herein.

82. At all relevant times, defendants caused Plaintiffs to fear for their physical wellbeing and safety and placed them in apprehension of immediate harmful or offensive touching.

83. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent or justification.

84. Due to the intentional, willful and unlawful acts of defendants, Plaintiffs suffered damages.

85. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth herein.

88. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

89. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered him without his consent.

90. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTIONMalicious Prosecution Under
New York State Law

91. The above paragraphs are here incorporated by reference as though fully set forth herein.
92. Defendants initiated the prosecution against Plaintiffs.
93. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.
94. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
95. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed, upon consideration of the merits thereof.
96. Due to the intentional, willful and unlawful acts of defendants, Plaintiffs suffered significant damages.
97. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
98. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTIONMalicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

99. The above paragraphs are here incorporated by reference as though fully set forth herein.
100. Defendants initiated the prosecution against Plaintiff.
101. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.
102. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
103. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed, upon consideration of the merits thereof.

104. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

105. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

106. The above paragraphs are here incorporated by reference as though fully set forth herein.

107. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

108. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

109. Defendants intended to inflict substantial harm upon Plaintiff.

110. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

111. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

113. The above paragraphs are here incorporated by reference as though fully set forth herein.

114. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

115. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

116. Defendants intended to inflict substantial harm upon Plaintiff.

117. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

118. Defendants' actions deprived Plaintiff of the right to be free from unreasonable searches and seizures and to not be deprived of liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

120. The above paragraphs are here incorporated by reference as though fully set forth herein.

121. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

122. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

123. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

124. Accordingly, defendants deprived Plaintiff of civil rights, pursuant to Art. I, §§ 1, 2, 6 and 9, of the New York Constitution, as well Art. II, §§ 10 and 12, of the New York Civil Rights Law.

125. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 *Against* Individual Defendants

127. The above paragraphs are here incorporated by reference as though fully set forth herein.

128. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

129. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

130. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

131. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

132. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

133. The above paragraphs are here incorporated by reference as though fully set forth herein.

134. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

135. Accordingly, defendants violated plaintiffs' rights, pursuant to the Administrative Code of the City of New York § 14-151.

136. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

137. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State law

138. The above paragraphs are here incorporated by reference as though fully set forth herein.

139. Plaintiffs, as African American, Black, Hispanic or Latino males, are members of a racial minority and protected class.

140. Defendants discriminated against Plaintiffs on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

141. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

142. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

143. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

144. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

145. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

146. Accordingly, defendants violated Plaintiffs' rights, pursuant to Art. I, § 11, of the New York Constitution, Art. VII, § 79-N, of the New York Civil Rights Law and § 296, ¶ 13, of the New York

Human Rights Law.

147. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

148. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

149. The above paragraphs are here incorporated by reference as though fully set forth herein.

150. Plaintiffs, as African American, Black, Hispanic or Latino males, are members of a racial minority and protected class.

151. Defendants discriminated against Plaintiffs on the basis of their race, color or ethnicity

152. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

153. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

154. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

155. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

156. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

157. Accordingly, defendants violated Plaintiffs' rights, under the Fourteenth Amendment.

158. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

159. The above paragraphs are here incorporated by reference as though fully set forth herein.

160. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberty or property without Due Process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

161. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

162. As a result, Plaintiffs sustained injuries to their person, was deprived of their liberties or was deprived of rights or privileges of citizens of the United States.

163. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

164. Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

165. Accordingly, defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

166. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

167. The above paragraphs are here incorporated by reference as though fully set forth herein.

168. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

169. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

170. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

171. The above paragraphs are here incorporated by reference as though fully set forth herein.

172. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

173. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

174. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

175. The above paragraphs are here incorporated by reference as though fully set forth.

176. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

177. Defendant City breached those duties of care.

178. Defendant City placed defendants in a position where they could inflict foreseeable harm.

179. Defendant City knew or should have known of its employees' propensity for committing civil rights violations.

180. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

181. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 *Against* Defendant City

182. The above paragraphs are here incorporated by reference as though fully set forth.

183. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiffs, to such violative behavior.

184. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

185. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

186. Defendant City's employees engaged in such egregious and flagrant violations of plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

187. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

188. Defendant City's conduct caused plaintiffs to be deprived of their civil rights, as guaranteed by the Constitution of the United States, via the Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

189. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- v) Awarding Plaintiffs reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs hereby demand a trial by jury.

Dated: Bayside, New York
September 16, 2022

SIM & DEPAOLA LLP

42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiffs
sdepaola@simdepaola.com

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
September 16, 2022

/s/ Samuel C. DePaola

Samuel C. DePaola, Esq.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DASHAWN DUNCAN and MALIQUE MENDOZA,

Plaintiffs,

-against-

CITY OF NEW YORK, STEVE TORRES and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS and VERIFIED COMPLAINT

SIM & DEPAOLA LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiffs

42-40 Bell Boulevard

Suite 405

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for